

## **NYSERDA EIR Program Client Services Agreement**

CLIENT SERVICES AGREEMENT (the “**Agreement**”) effective as of May 7, 2019 by and between The Trustees of Columbia University in the City of New York (“**COLUMBIA**”) and CPWaterTech\_\_, located at ARTEC (the “**Client**”), (together the “**Parties**”).

WHEREAS New York State Energy Research and Development Authority (“**NYSERDA**”) recognizes the need for executive level mentoring and management advice for start-up, seed, and early-stage clean energy companies in New York State to help them gain viability, grow their business, and create revenues and employment; and

WHEREAS COLUMBIA and NYSERDA have entered into a contract to develop and operate a NYSERDA “Entrepreneurs-In-Residence” and mentoring network program (the “**NEIR program**”) for eligible clean energy companies; and

WHEREAS, the Client is an early stage company dedicated to the development of CPWater Tech; and

WHEREAS the Client has been selected by NYSERDA to participate in the NEIR program, and desires to participate in the NEIR program through engaging COLUMBIA to provide services in connection with the NEIR program for the development of the Client and its operations and to obtain the benefits thereof; and

WHEREAS COLUMBIA is willing to provide such services to the Client, subject to its contract with NYSERDA;

NOW, THEREFORE intending to be legally bound and in consideration of the mutual promises contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby conclusively acknowledged, the Parties hereby agree as follows:

### **I. The NEIR Program**

The Client agrees to participate in the NEIR program, and COLUMBIA agrees to provide the Client with NEIR program services, as the Client and COLUMBIA have mutually defined in Appendix A to this Agreement (the “**Work Plan**”).

**Project Duration:** May 7, 2019 to June 30, 2019

**Number of EIR days:** 2.5

COLUMBIA’s services will be provided through COLUMBIA NYSERDA entrepreneur-in-residence (“**EIR**”), John Wienecke, as jointly selected by the Client and COLUMBIA. The Client agrees to actively engage in the NEIR program and the services set forth in the Work Plan.

## **II. Term and Termination**

- A. The services hereunder shall be completed within the time frame set forth in Section I. Unless the Parties agree, in writing, to extend the term of this Agreement.
- B. Either party may terminate the work under this Agreement at any time, for any reason or no reason, by providing fifteen (15) days prior written notice to the other party.
- C. If NYSERDA issues a Stop Work Order, COLUMBIA may immediately stop all work under this Agreement. As of that time no additional work will be carried out under this Agreement without written approval from COLUMBIA.

## **III. Client Contributions**

In consideration for the services provided to the Client hereunder, the Client agrees to support NYSERDA and COLUMBIA missions by:

- A. Sharing non-proprietary information relating to the Client's general business experiences, practices and operations with other regional companies and entrepreneurs, to improve regional education and training efforts.
- B. Participating in NYSERDA's and/or COLUMBIA's biannual or annual metrics surveys for up to five (5) years from the effective date of this Agreement. The Client hereby agrees to provide responses to survey requests within twenty (20) business days from each survey request.
- C. Upon request from Columbia or NYSERDA, provide written confirmation with backup documentation for any of the following events: receipt of non-NYSERDA grant or prize money, investor funding, pilot agreements, sales contract or orders resulting from assistance from an EIR, and admission into an accelerator program or incubator. Examples of backup documentation include but are not limited to the following: product dossiers, purchase orders, and invoices.
- D. Unless otherwise instructed by COLUMBIA, responding to project-related information requests and submitting responses to COLUMBIA on the following schedule:
  - 1. Monthly survey within ten (10) business days following the end of each month of a project,
  - 2. Post project survey, within twenty (20) business days following the completion of the work under this Agreement.
- E. Participating and supporting the creation of mutually acceptable public relations announcements and other reports regarding the Client's progress and COLUMBIA's work.
- F. Including NYSERDA's and COLUMBIA's logos and referencing their support in all relevant press releases, advertising and public relations efforts that refer to work under

this Agreement, or results achieved through work done under this Agreement. The Client shall obtain COLUMBIA's written permission prior to any use of the COLUMBIA name or logo, and the Client shall obtain NYSERDA's written permission prior to any use of the NYSERDA name or logo.

If the Client fails to respond in a timely manner to the items request under III.B.-D. above, COLUMBIA reserves the right in its sole discretion to suspend the offering of EIR new engagements until such information is provided to COLUMBIA.

#### **IV. Miscellaneous**

- A. All documents and materials created by COLUMBIA, the EIR, and/or the Client under the Work Plan and otherwise in the fulfillment of this Agreement shall be the property of the Client. The Client will provide copies of such documents to COLUMBIA upon COLUMBIA's request. COLUMBIA claims no rights to any intellectual property arising from the EIR's services, other than the reports provided to COLUMBIA hereunder, which COLUMBIA may freely use for any purpose. Columbia is not liable to the Client with respect to the EIR's performance or non-performance of the EIR's activities in connection with NEIR program.
- B. This Agreement sets forth the entire agreement between the parties with respect to the subject matter hereof, and no amendment, change or modification shall be effective unless in writing and signed by each of the Parties.
- C. All provisions of this Agreement that by their terms require performance by one or both parties following expiration or termination of this Agreement shall survive such expiration or termination.
- D. This Agreement shall be binding on the successors, assigns, administrators and legal representatives of the respective parties; provided, however, that neither party may assign this Agreement without the express prior written consent of the other party. Any attempt to assign this Agreement without the other party's written consent shall be void.
- E. Each party hereby represents and warrants to the other that (i) it is duly organized, validly existing and in good standing under the laws of the State of New York; (ii) it has duly authorized this Agreement by all requisite corporate action; (iii) the individual signing below is duly authorized and directed to execute this Agreement on its behalf; and (iv) this Agreement constitutes a legal, valid and binding obligation upon it.
- F. It is the express intention of the parties that the relationship of Columbia and Client shall be that of independent contractors and shall not be that of agents, partners or joint venturers. Nothing in this Agreement is intended or shall be construed to permit or authorize either party to incur, or represent that it has the power to incur, any obligation or liability on behalf of the other party.

IN WITNESS WHEREOF, the Parties hereto have executed this Agreement as of the day and year first above written.

By:   
Name: Julia Hasty  
Title: EL

By: \_\_\_\_\_  
James R. Aloise  
Assistant Vice President and  
Director of Strategic Initiatives,  
Columbia Technology Ventures